

BEFORE THE
FEDERAL MARITIME COMMISSION

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AJS(x2)
CADRS

ORIGINAL

Docket No. 19-09

VERTERRA LTD.

COMPLAINANT,

V.

D.B. GROUP AMERICA LTD. and

D.B. GROUP INDIA LTD.

RESPONDENTS.



VERIFIED COMPLAINT

A. Complainant

1. Complainant, VerTerra, Ltd. ("VerTerra") is a Delaware limited company with its principal place of business in the New York City area.

2. VerTerra is in the business of creating and selling environmentally sustainable and disposable dinnerware constructed from fallen palm leaves.

3. Much of VerTerra's product is manufactured in Indonesia, India and The People's Republic of China and then shipped to the United States.

B. Respondents

4. Respondent, D.B. Group America Ltd. ("D.B. America") is a non-vessel operating common carrier (NVOCC) New York limited company with its principal place of business located at 150-30 132nd Avenue, Unit G, Suite 307, Jamaica, New York 11434.

5. D.B. America is an FMC licensed NVOCC (License No. 019266).
6. Respondent, D.B. Group India Ltd. ("D.B. India") is a non-vessel operating common carrier (NVOCC).
7. D.B. India is an FMC licensed NVOCC (License No. 024919).
8. Upon information and belief, D.B. Group America and D.B. India are both subsidiaries of a larger Italian company, D.B. Group S.P.A.
9. D.B. Group S.P.A. has affiliated D.B. Companies all over the world, including, but not limited to, D.B. Group America, D.B. Group India Pvt. Ltd., D.B. Group China, Ltd., PT DGB Logistic Indonesia.

C. Jurisdiction and Limitations

10. This Complaint is being filed pursuant to Section 11(a) of the Shipping Act, 45 U.S.C. § 41301. VerTerra, Inc. is seeking reparations for injuries caused to it by D.B. America and D.B. India as a result of their violations of 46 U.S.C. §§ 41104, 41104(a), 41104(a)(2), 41104(a)(3), 41104(a)(4), 41104(a)(5), 40501 and 40502.

11. As more particularly alleged below, the Respondents provided service in the liner trade that is not in accordance with rates, charges, classifications, rules, and practices contained in a tariff published with the Commission and not reflected in any NSA or NRA between the Respondents and VerTerra.

12. The Respondents also engaged in an unfair and unjust discriminatory practice in that it imposed surcharges and general rate increases which did not appear in their tariffs and threatened to withhold cargo in order to force VerTerra into paying unrelated invoices.

13. The Respondents failed to keep open to public inspection in its tariff system, tariffs showing all its rates, charges, classifications, rules and practices between all points or ports on its own route and on any through transportation rout that has been established.

14. The Respondents failed to enter into a NSA or NRA with VerTerra.

15. While they were investigating and attempting to resolve this matter, the Complainants and Respondents entered into a tolling Agreement with regard to all shipments between May of 2016 and December of 2018, extending the time to file this FMC action until November 22, 2019. That agreement and the extensions are attached hereto as Ex. A. As such, there should be no statute of limitations issue as to all transactions between the parties.

D. Statement of Facts

16. In the early spring of 2016 D.B. America approached VerTerra about handling their shipping. VerTerra shared with D.B. America the rates it was paying for shipping and D.B. America informed VerTerra they were being overcharged by its shipping vendor of eight (8) years.

17. In May of 2016 VerTerra and Michael Dwork, President of VerTerra (“Dwork”) executed a document entitled credit application. The credit application contains no shipping terms or rates and clearly contemplates additional documentation and terms would be needed for a contract to be formed for each transaction.

18. In fact, the credit application expressly states that “all transactions are governed by the terms of the creditor’s documents.”

19. Although the “creditor’s documents” described above is ambiguous and undefined, it arguably could have taken anyone of several forms, a tariff, a NSA or a NRA, however, none of these exist with regard to services the Respondents offered to VerTerra, its products or its lines. Moreover, D.B. America never provided quotes or received written sign off on shipping rates as originally promised.

20. D.B. America coordinated shipments for VerTerra from May of 2016 through December of 2018. During that time it handled approximately 293 discreet shipping jobs for VerTerra.

21. In December of 2018 VerTerra ceased utilizing D.B. America as a result of a billing dispute and after D.B. America improperly threatened to withhold freight currently on the water in relation to payment of older, unrelated invoices.

22. A review of the records undertaken in late 2018 by VerTerra in connection with that dispute, revealed that D.B. America had not been providing quotes for approval before shipping as it had represented and that D.B. America had often been charging substantially more than it had represented would be the cost of these shipments.

23. When initially confronted about this issue in the fall of 2018, D.B. America first responded that it had not overcharged VerTerra as it had obtained written quote approvals from VerTerra on each shipment. VerTerra had no record of such approvals and despite repeated requests to provide such approvals from D.B. America none have been forthcoming.

24. As a result, VerTerra began researching the rates and tariffs it was being charged by D.B. America.

25. VerTerra's review of D.B. America's tariffs revealed it had no applicable tariffs published for the entire period of shipments between it and VerTerra, from mid 2016 through late 2018.

26. Moreover, the rules tariff D.B. America, Ltd filed with DART, which has remained the same since 2016, makes no mention of D.B. America utilizing NRA or NSA in lieu of publishing a tariff with regard to its relationship with VerTerra.

27. In fact, at no time during the business relationship between VerTerra and D.B. America was there a NRA or a NSA entered into between VerTerra and D.B. America or any of its affiliated entities.

28. Furthermore, to the extent D.B. America continues to claim each shipment with VerTerra was governed by a NRA, D.B. America had an obligation to have on file copies of all such NRAs pursuant to 46 CFR 532.7(a).

29. To the extent it will argue there was a verbal NRA, ¹D.B. America still failed to provide notice of its alleged reliance on NRA in its public rules tariff.

30. To the extent D.B. America will argue it was acting as a freight forwarder, as opposed to an NVOCC, it still failed to have any reference to a NRA or a NSA in its rules tariff and applied General Rate Increases and surcharges not reflected in its tariff.

31. Similarly, the other D.B. entities, which D.B. America utilized as an NVOCC, including D.B. India, also did not have the appropriate paper work in place.

32. After reviewing the bills of lading for shipments from India, it appears that D.B. India, not D.B. America, was issuing the bills of lading for many of the shipments at issue, including on-board bills of lading for VerTerra's shipments.

33. D.B. India is the only D.B. entity with a worldwide tariff which would applicable to VerTerra's goods.

34. However, D.B. India's rules tariff posted on DPI during the relevant period indicates that in lieu of a tariff the carrier will rely on a NRA with the shipper.

35. Despite this representation, there was never any NRA or NSA between VerTerra and D.B. America or D.B. India.

¹ Pursuant to 46 CFR 531(i), 46 CFR 532.3(a) and 46 CFR 532.5(a), an NRA must be in writing.

36. Also, the bills of lading reflect that D.B. America, through D.B. India, was applying “surcharges” and General Rate Increases to the fees it was charging VerTerra, when these surcharges were not applicable and not referenced in its tariff.

37. For instance, D.B. America was applying a “port congestion surcharge” in New York for April of 2018 when no such surcharge was in effect.

38. Also the Respondents were applying General Rate Increases when no such rate increases were in effect.

39. A comparison of the rate charged by the Respondents to VerTerra for the period in questions shows they were substantially above market for the routes at issue.

E. Violations of the Shipping Act of 1984

40. D.B. America, upon information and belief, violated 46 U.S.C. § 40501 by failing to keep open to public inspection in its tariff system, tariffs showing all its rates, charges, classifications, rules and practices between all points or ports on its own route and on any through transportation route that has been established.

41. D.B. India, upon information and belief, violated 46 U.S.C. § 40501 by failing to keep open to public inspection in its tariff system, tariffs showing all its rates, charges, classifications, rules and practices between all points or ports on its own route and on any through transportation route that has been established.

42. To the extent D.B. America and/or D.B. India will claim one or the other entered into a NSA with VerTerra, D.B. America, violated 46 U.S.C. § 40502(b)(1), (c) and (d).

43. D.B. India, upon information and belief, violated 46 U.S.C. § 41104(a)(2)(A) by charging VerTerra rates greater than those reflected in its published tariff.

44. D.B. America, upon information and belief, engaged in an unfair or unjustly discriminatory practice in violation of 46 U.S.C. §41104(3) by threatening to retain freight on the basis of outstanding invoices unrelated to the freight at issue.

45. D.B. India, upon information and belief, engaged in an unfair or unjustly discriminatory practice in violation of 46 U.S.C. §41104(a)(4) by charging VerTerra rates greater than those it charged others.

46. Upon information and belief, the above described violations of 46 U.S.C. § 41104 were willful and knowing.

47. The above described violations are continuing from the date of each applicable shipment through present.

F. Injury to VerTerra

48. The above violation constitute violations of the Shipping Act, upon information and belief, as a direct result of the violations of the Shipping Act of 1984 by the Respondent, VerTerra incurred damages in excess of \$100,000. The full extent of damages can only be determined after obtaining discovery in regard to the entire time period for which D.B. America has been overcharging VerTerra and the dollar amount of such overcharges.

49. As a result of entering into the credit agreement and incorporated guarantee, on the basis of these intentional misrepresentations, the credit application and incorporated guarantee should be rescinded.

G. Prayer for Relief

50. WHEREFORE, VerTerra prays that the Respondents be required to answer the charges in this Complaint; and that after due hearing and investigation: an order be entered 1.) commanding Respondents to pay VerTerra reparations for violations of the Shipping Act, including overcharges, plus interest, costs, and attorneys' fees, and other damages to be

determined pursuant to 46 USC § 41305; and 2.) such other and further relief be granted as the Commission determines to be proper, fair and just under the circumstances.

51. VerTerra requests a hearing on this matter, and further requests that the hearing be held in New York, New York.

Dated: New York, New York
November 22, 2019

Respectfully submitted,

By: 

Christopher J. Sovak
BUSHELL, SOVAK & KANE LLP
274 Madison Avenue, Suite 901
New York, New York 10016
Tel: (212) 949-4700
Fax: (212) 286-0513
csovak@bushellslovak.com
Attorneys for VerTerra Ltd.

VERIFICATION

Michael Dwork, being duly sworn, states that he is the President of VerTerra Ltd (Complainant), and that the foregoing is true to his own knowledge, except as to matters therein stated to be alleged on information and belief. As to the matters stated to be alleged on information and belief, Complainant believes them to be true based upon either personal knowledge or information received from others.


Michael Dwork

Sworn to before me this 1st ^{November} day of ~~October~~ 2019.



NOTARY PUBLIC

ELISABETH I. LIMA
Notary Public, State of New York
No. 01LI6230537
Qualified in New York County
Commission Expires Nov. 01, 2022

EXHIBIT A

BUSHELL, SOVAK & KANE LLP

ATTORNEYS AT LAW

www.bushellslovak.com

274 MADISON AVENUE, SUITE 901
NEW YORK, NY 10016

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TELE (212) 949-4700  
FAX (212) 286-0513  
~~~~~

CHRISTOPHER J. SOVAK
cslovak@bushellslovak.com

115 SETH LOW MOUNTAIN ROAD
RIDGEFIELD, CT 06877

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TELE (203) 403-5132  
FAX (203) 724-0866

November 15, 2019

## Via Email

Richard S. Altman  
Reisman Rubeo & Altman, LLP  
Attorneys At Law  
151 Broadway  
Hawthorne, New York 10532

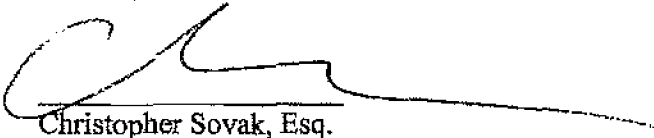
RE: D.B. Group America Ltd. et al. v. VerTerra Ltd, et al.  
Case Number: 651402/2019

Dear Richard:

As per our correspondence of November 8, 2019 the parties have agreed to extend the duration of the July 2019 Tolling and Standstill Agreement ("Agreement") between D.B. Group America Ltd, D.B. Group India Ltd and VerTerra Ltd from its present termination date of November 15, 2019 until Friday, November 22, 2019. This letter agreement supersedes the original November 1, 2019 extension and any subsequent extension. A copy of the Agreement and the executed signature pages is attached hereto. By their signatures below, the attorneys for all parties to the Agreement represent they have conferred with their clients and have their clients' authority to enter into the above referenced extension and amendment of the Agreement.

\_\_\_\_\_  
Ricard Altman, Esq.

Attorney for D.B. Group America Ltd and D.B. Group India Ltd

  
\_\_\_\_\_  
Christopher Sovak, Esq.

Attorney for VerTerra, Ltd and Michael Dwork

For purposes of this Act, the term "child" means any person under 18 years of age who is a citizen of the United States, or who is a child of a citizen of the United States, or who is a child of a permanent resident alien of the United States.

The term "child" also includes any person who is a child of a citizen of the United States, or who is a child of a permanent resident alien of the United States, or who is a child of a naturalized citizen of the United States.

The term "child" also includes any person who is a child of a citizen of the United States, or who is a child of a permanent resident alien of the United States, or who is a child of a naturalized citizen of the United States, or who is a child of a citizen of the United States, or who is a child of a permanent resident alien of the United States, or who is a child of a naturalized citizen of the United States, or who is a child of a citizen of the United States, or who is a child of a permanent resident alien of the United States, or who is a child of a naturalized citizen of the United States.

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10. The following shall be the terms and conditions of the purchase of the above described property by the said buyer, to wit:

11. The purchase price of the property is the sum of P10,000,000.00 (Ten Million Pesos) only, payable in cash.

12. The purchase price shall be paid by the buyer in full at the time of the execution of the deed of sale, to be evidenced by a duly authenticated receipt of the seller.

13. The seller warrants that the property is free from all liens, mortgages, encumbrances, and other claims, and that the same is in good and lawful possession of the seller.

14. The seller warrants that the property is free from all taxes, dues, and assessments, and that the same is in good and lawful possession of the seller.

15. The seller warrants that the property is free from all claims, demands, and suits, and that the same is in good and lawful possession of the seller.

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**13.** The  $2 \times 2$  matrix  $A$  is such that  $\det A = 1$  and  $A^{-1} = A^T$ . Find the value of  $\det A$ .

In the problem set, find the value of  $\det A$  for the matrix  $A$  such that  $\det A = 1$  and  $A^{-1} = A^T$ . Find the value of  $\det A$  for the matrix  $A$  such that  $\det A = 1$  and  $A^{-1} = A^T$ .

Answer: 1

**14.** The matrix  $A$  is such that  $\det A = 1$  and  $A^{-1} = A^T$ . Find the value of  $\det A$ .

Answer: 1

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# BUSHELL, SOVAK & KANE LLP

ATTORNEYS AT LAW

www.bushellsovak.com

274 MADISON AVENUE, SUITE 901  
NEW YORK, NY 10016

~~~~~  
TELE (212) 949-4700
FAX (212) 286-0513
~~~~~

CHRISTOPHER J. SOVAK  
csovak@bushellsovak.com

115 SETH LOW MOUNTAIN ROAD  
RIDGEFIELD, CT 06877

~~~~~  
TELE (203) 403-5132
FAX (203) 724-0866

November 8, 2019

Via Email

Richard S. Altman
Reisman Rubeo & Altman, LLP
Attorneys At Law
151 Broadway
Hawthorne, New York 10532

RE: D.B. Group America Ltd. et al. v. VerTerra Ltd, et al.
Case Number: 651402/2019

Dear Richard:

As per our correspondence of November 8, 2019 the parties have agreed to extend the duration of the July 2019 Tolling and Standstill Agreement ("Agreement") between D.B. Group America Ltd, D.B. Group India Ltd and VerTerra Ltd from its present termination date of November 8, 2019 until Friday, November 15, 2019. This letter agreement supersedes any prior extension. A copy of the Agreement and the executed signature pages is attached hereto. By their signatures below, the attorneys for all parties to the Agreement represent they have conferred with their clients and have their clients' authority to enter into the above referenced extension and amendment of the Agreement.

Ricard Altman, Esq.
Attorney for D.B. Group America Ltd and D.B. Group India Ltd



Christopher Sovak, Esq.
Attorney for VerTerra, Ltd and Michael Dwork

VERTELLA LTD. (Plaintiff) vs. D.B. GROUP AMERICA LTD.

This Agreement, dated as of July __, 2019, is entered into between D.B. Group America Ltd. and D.B. Group India Ltd. ("D.B. Group"), on the one hand, and VerTerra LTD ("VerTerra") and Michael Dwork ("Dwork") on the other (collectively, the "Parties").

WHEREAS, the Parties are currently engaged in litigation in the Supreme Court of the State of New York, County of New York, in an action entitled *D.B. Group America Ltd. v. VerTerra LTD and Michael Dwork*, Index No. 651402/2019;

WHEREAS, the Parties are assessing their rights and obligations arising out of or related to certain shipments facilitated and/or services provided by D.B. Group America Ltd., D.B. Group India Ltd. and/or their affiliates and related companies and the amounts charged to, owed by, and/or reparations sought by VerTerra and Dwork under common law or applicable Federal Regulations, and the applicable remedies available to the Parties whether in Court or before the Federal Maritime Commission (collectively, the "Issues");

WHEREAS, the Parties wish to engage in discussions in an effort to address and resolve the Issues without the need to immediately engage in further litigation before the Federal Maritime Commission ("FMC"), a United States District Court ("Federal Court"), or the New York Supreme Court ("State Court");

WHEREAS, the Parties wish to protect themselves against any claimed prejudice arising from any delay in the assertion of any of their rights or defenses and, therefore, seek to renew, revive, toll, and/or waive the statute of limitations, the doctrine of laches, and/or any other defense based on the lapse of time with respect to any claims, regulatory actions, causes of actions, suits, covenants, agreements, promises, contracts, trespasses, damages and/or demands whatsoever, in law or in equity (collectively the "Claims or Causes of Action"), whether known or unknown, anticipated or unanticipated, that may have arisen in connection with the Issues;

NOW, THEREFORE, in consideration of the premises, and other good and valuable consideration, receipt and sufficiency of which is hereby acknowledged, the Parties hereby agree as follows:

1. The Parties agree that the period of time from July 3, 2019, to and including November 1, 2019, shall not be asserted or relied upon in any way in computing the running of time under any applicable statute of limitations, the doctrine of laches, or any other defense based on the lapse of time with regard to any and all Claims or Causes of Action in connection with the Issues that may have arisen and that are not so barred as of the date of this Agreement.

2. With regard to any Claim or Cause of Action that may have arisen in connection with the Issues and that may have become barred prior to or as of the date of this Agreement by the operation of any statute of limitations, the doctrine of laches, or any other defense based on the lapse of time, the Parties, respectively, agree to waive their right to assert said defense with respect to any such Claim or Cause of Action, so long as any such Claim or Cause of Action is interpreted no later than November 1, 2019.

3. This Agreement shall terminate on November 1, 2019.

4. Neither this Agreement nor any acts or statements related thereto shall constitute any admission or acknowledgment of liability nor shall same be used as evidence in any proceeding, except to enforce the terms of this Agreement.

5. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter described herein and may not be modified in whole or in part except by a writing executed by each of the Parties.

6. Each undersigned party represents, warrants, and states that all legal action necessary for the effectuation and execution of this Agreement has been validly taken and that the individuals whose signature appear below on behalf of each party, to the extent said party is

not a natural person, are duly authorized to execute this Agreement on behalf of their respective parties.

7. Each of the Parties has had a full and ample opportunity to review this Agreement and make suggestions or changes, as has counsel for same. Accordingly, the Parties understand and agree that this Agreement is deemed to have been jointly drafted by the Parties and the Parties agree that the common-law principles of construing ambiguities against the drafter shall have no application hereto. This Agreement should be construed fairly and not, in favor of, or against, one party as the drafter hereof.

8. As used herein "D.B. Group America Ltd." refers to D.B. Group America Ltd., and all of its parent, subsidiary, affiliated and associated companies, as well as the successors of each of them. D.B. Group America Ltd. represents and warrants that it has the authority to bind all of its parent, subsidiary, affiliated and associated companies, and the successors of each of them, to this Agreement.

9. As used herein "D.B. Group India Ltd." refers to D.B. Group India Ltd., and all of its parent, subsidiary, affiliated and associated companies, as well as the successors of each of them. D.B. Group India Ltd. represents and warrants that it has the authority to bind all of its parent, subsidiary, affiliated and associated companies, and the successors of each of them, to this Agreement.

10. As used herein "VerTera" refers to VerTera LTD and all of its parent, subsidiary, affiliated and associated companies, as well as the successors of each of them. VerTera LTD represents and warrants that it has the authority to bind all of its parent, subsidiary, affiliated and associated companies, and the successors of each of them, to this Agreement.

11. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same document, and in proving this Agreement, it shall not be necessary to produce or account for all such counterparts.

12. Facsimile or electronically transmitted copies hereof of shall be deemed original for all purposes.

13. This Agreement shall be interpreted in accordance with the substantive law of the State of New York, without application of New York's choice of law rules.

14. To the extent that any portion, covenant, clause or language in this Agreement may be held to be invalid or legally unenforceable by a court of competent jurisdiction, the Parties agree that the remaining portions, covenants, clauses and language of this Agreement shall not be affected and shall be given full force and effect.

15. This Agreement shall not be enforceable until fully executed by all the Parties.

IN WITNESS WHEREOF, the Parties hereto above have duly executed this Agreement as of the day and year first above written.

B.B. Group America Ltd.

By Archie W. Hill

B.B. Group India Ltd.

By [Signature]

Verdict Ltd.

THE STATE OF NEW YORK

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13. This Agreement shall be interpreted in accordance with the substantive law of the State of New York, without application of New York's choice of law rules.

14. To the extent that any portion, covenant, clause or language in this Agreement may be held to be invalid or legally unenforceable by a court of competent jurisdiction, the Parties agree that the remaining portions, covenants, clauses and language of this Agreement shall not be affected and shall be given full force and effect.

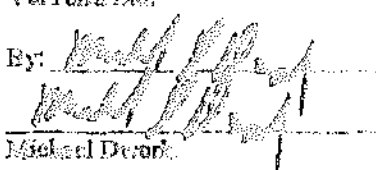
15. This Agreement shall not be enforceable until fully executed by all the Parties.

IN WITNESS WHEREOF, the Parties hereto above have duly executed this Agreement as of the day and year first above written.

D.E. Group America Ltd.

D.B. Group India Ltd.

VerTera Ltd.

By: 

Michael Derant